

Apple Intelligence. Europe Can Wait

Interview with Guido Scorza, member of the Italian Data Protection Authority

(by Mariapia Ebreo, L'Espresso, June 28, 2024)

Generative intelligence, work in progress. Tim Cook had announced the launch of Apple Intelligence, only to clarify later that it would not be arriving in Europe, at least not in the near future. Those who rushed to register the stock market jump of Apple shares after the announcement, and those who criticized the Cupertino company for its delay in approaching the AI market, have all been somewhat disappointed. We wondered why Apple Intelligence will not be on our iPhone 16s next September and posed the question to Guido Scorza, a member of the Italian Privacy Authority.

Will Apple Intelligence really not concern us?

"It will concern us soon. Apple Intelligence is a new name for a service that will be enhanced, but it is not new; apps and AI services are already being used on smartphones. When the announcement was made, it seems there was an intention to launch in Europe as well. The change of pace came later, perhaps due to a deeper examination of legal issues or an informal dialogue with Brussels, who knows. In fact, the company's statement speaks of a postponement of the launch in Europe due to the need to comply with the Digital Markets Act (DMA)."

The Apple Intelligence being developed in Cupertino will be executed directly on the iPhone and will be able to interface with AI providers, currently ChatGPT, but there are talks of Google and even Meta. "Apple will necessarily have to open access to its system for all AI providers, as required by European regulations. But Apple has currently only initiated a 'one to one' agreement with OpenAI. So, while Google and Meta may be included, in the long run, everyone will have to be able to interface through iPhones and Apple devices, due to a mix of commercial policy and regulatory obligation."

There is talk of native integration of AI within the Apple ecosystem; what does this mean for consumers?

"It translates into a higher level of use of AI solutions. The killer application of smartphones is ease of use, and this will also apply to AI. If 25 years ago not everyone had easy access to the MS-DOS programming system, the Apple-style interface introduced usability, an extraordinary democratization tool that allowed broader access to technology."

Would an instruction manual be necessary?

"The first microwave ovens were considered dangerous and came with a warning booklet, along the lines of: read first and then turn on. iPhones do not have an instruction manual: Apple has played and won the game on interfaces and device usability. And the promise is the same with AI. But ease of use convinces most people that it is unnecessary to 'turn on the brain' before approaching a new device. Therefore, the risk is not in AI itself, but in the massification of its use."

Looking at deep fakes, a technology that is already widespread, if it will be enough to press a button to modify a photo on an iPhone, a minute later we could find ourselves with a million fakes circulating on the Web. And with a huge problem.

"We should tell the big players, including Apple, that there is a limit to simplification: those who use such powerful technologies should be clear that, metaphorically, they need to put on a helmet or buckle their seatbelt to avoid harming themselves or others. A manual of instructions would really be necessary."

Italy passed a bill on AI on April 23 to align its regulatory system with the European one. Is this a forward-looking vision? Or a constraint on the development of innovation and technology in Italy and Europe?

"The European regulation has been published in the Official Gazette and, as a regulation, is already applicable by all member countries, without local implementing resolutions. The Italian bill follows its terms and adds aggravating factors for crimes committed with AI. The risk is that it does not improve market quality but creates a barrier for small entities. The decree itself is not harmful; it is full of sensible provisions largely derived from the EU regulation. I have doubts about whether it was strictly necessary to adopt an Italian regulation when there is already a European one."

The Italian Data Protection Authority was the first to block OpenAI and ChatGPT last year; are you also working on Apple Intelligence?

"At that time, OpenAI did not have a main establishment in any European country, which allowed any European Authority to intervene. Now, however, OpenAI has opened an office in Dublin, as has Apple, and therefore, if there were a violation of European privacy regulations, the investigative action would fall to the authority of the competent country."